

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

CIVIL APPELLATE JURISDICTION

REVIEW PETITION NO. 142 OF 2025

IN

WRIT PETITION NO. 1983 OF 2023

The City and Industrial Development Corporation
Through Its Authorized Representative

...Petitioner

Versus

1. Ashok Gangadhar Puranik
2. Atul Gangadhar Puranik
3. State of Maharashtra through the office of
Government Pleader, High Court, Bombay
4. The Deputy Collector (Land Acquisition) /
SLAO, Metro Centre No.1
5. The Dy. Commissioner, Konkan Division,
Acquisition/Award branch, Konkan
6. The Tahsildar, Tahsildar & Executive
Magistrates Office
7. The Circle Officer
8. Citi Bank
9. Citi Bank N.A.
10. The District Collector (IAS) Raigad
11. The Divisional Commissioner (IAS) Konkan
12. The Urban Development– 1 Department through
the office of the Principal Secretary / Additional
Chief Secretary (IAS)
13. The Revenue & Forest Department through the
office of The Principal Secretary (IAS)

...Respondents

Mr. G.S. Hegde, Senior Advocate, a/w P.M. Bhansali, Soham Bhalerao, Rahul Sinha, Harshit Tyagi, Arafat Siddique, Arnav Ashtikar, i/b Pinky Bhansali, for Petitioner/CIDCO.

Mr. Girish Godbole, Senior Advocate, a/w Shailendra S. Kanetkar, Sapna Rachure,

Mr. Vishal Kanade, a/w Bharatkumar Jani, Raj Adhia, i/b Economic Laws Practice for the Applicant in IA/11904/25.

Mr. Shailendra Kanetkar, a/w Priya Chaubey, i/b Sapana Rachure for Respondent Nos.1 & 2.

Ms. M.S. Bane, AGP for Respondent-State.

Mr. B.V. Baravkar, a/w Swayam S. Chopda, Officer on Special Duty, Court Receiver, High Court, Bombay.

**CORAM: G. S. KULKARNI &
SOMASEKHAR SUNDARESAN, JJ.**

DATE: JULY 3, 2026

P.C.:

Context and Factual Background:

1. The captioned Review Petition seeks a review of our judgement dated November 26, 2024 (“**Judgement under Review**”) in Writ Petition No. 1983 of 2023 (“**WP 1983**”).
2. The Review Petitioner, City and Industrial Development Corporation of Maharashtra Ltd. (“**CIDCO**”), contends that the Judgement under Review, deserves to be recalled since according to CIDCO, it has come into receipt of

new and important evidence in the form of authenticated documents that have been subsequently received, that would point to land acquisition in respect of land admeasuring 35,210 square meters bearing Survey No. 59/8 (“**Subject Property**”) having been completed, and raise a possibility that compensation has already been paid.

3. We are afraid this is an extremely peculiar case that betrays the lengths to which CIDCO is willing to go in the teeth of a long legacy of orders of various Benches of this Court. Worse, there are credible pointers to how CIDCO is capable of getting involved in a family dispute among joint landowners whose land had been acquired for the New Bombay project, in the teeth of the Judgement under Review not being interfered with when one of the family members on whom we had imposed costs sought to challenge it, and when even the State of Maharashtra has decided not to challenge the Judgement under Review.

4. The Judgement under Review had quashed a demand raised by the State of Maharashtra for refund of advance compensation paid and directed the completion of acquisition proceedings to compute the balance compensation, if any. Two Writ Petitions being Writ Petition No. 7604 of 2018 and Writ Petition No. 10264 of 2023, both filed by one Mr. Ranjit Puranik (“**Ranjit**”) seeking the quashing of the acquisition were dismissed. The

amounts deposited in Court by the State in WP 1983 along with the accruals were directed to be released to the landowners in proportion to their entitlement within a period of two weeks. An inquiry was directed to be conducted by the State with a report having to be filed in this Court to report compliance.

5. Ranjit's Special Leave Petition in the Supreme Court was dismissed. CIDCO filed a Special Leave Petition after the deadline for compliance had passed and eventually when it was listed (these events are detailed in greater depth below), sought liberty to withdraw the Special Leave Petition to pursue a review instead, and thereafter, it has filed this Review Petition. As stated earlier, the primary basis for justifying the Review Petition is that CIDCO has laid its hands on authenticated material that it never had before, which if it had access to prior to the Judgement under Review, it would have been able to show to this Court. As will be seen from subsequent paragraphs, this foundational premise is blatantly and factually inaccurate.

6. By way of a quick background, the landowners whose lands were acquired by CIDCO, including the Subject Property are siblings, Ashok G. Puranik ("**Ashok**"), Atul G. Puranik ("**Atul**") and Anand G. Puranik ("**Anand**").

7. According to CIDCO, new evidence has come into its hands by reason of an inspection conducted of the proceedings filed in a Suit covering family

disputes among the owners of the Subject Property. Before delving into the merits of the Review Petition, the following extracts from the Judgement under Review would be appropriate – this order will use the same terms as defined in these extracts:-

*“2. These Writ Petitions relate to an acquisition of land bearing survey no. 59/8 admeasuring 3 Hectares, 72.3 Ares situated at Village Asudgaon, Taluka Panvel, District Raigad (“**Subject Property**”) . The Subject Property was notified to be acquired for the New Bombay project, for which the City and Industrial Development Corporation (“**CIDCO**”), Respondent No.7 came to be formed.*

The Parties:

*3. Before setting out the contents of each of these Writ Petitions, it would be instructive to note the arraignment of the parties involved. One Mr. Gangadhar Vishnu Puranik (“**Gangadhar**”) was originally the owner of the Subject Property. He had three sons, namely, Mr. Anand Gangadhar Puranik (“**Anand**”), Mr. Ashok Gangadhar Puranik (“**Ashok**”) and Mr. Atul Gangadhar Puranik (“**Atul**”). Upon the demise of Gangadhar, the names of Anand, Ashok and Atul came to be mutated as heirs inheriting the Subject Property. Anand passed away on October 20, 2023.*

Writ Petitions:

*4. Anand’s son is Mr. Ranjit Anand Puranik (“**Ranjit**”), who has filed Writ Petition No. 7604 of 2018 (“**WP 7604**”) seeking a declaration that the acquisition of the Subject Property should be declared as illegal and struck down, inter alia on the premise that the Subject Property is ancestral joint family property, in which Ranjit has an interest. Upon the demise of Anand, Ranjit has added his mother (widow of Anand) Sheela Puranik and his two sisters namely, Gouri Arunkumar Suvarna and*

Gayarti Anand Puranik as parties in WP 7604, as legal heirs of Anand.

5. *Ashok and Atul have filed Writ Petition No. 1983 of 2023 (“**WP 1983**”), seeking a direction that the acquisition of the Subject Property, which is incomplete, be concluded, releasing the balance amounts due to them, and which is deposited with the Registry of this Court, pursuant to an order dated February 24, 2023. WP 1983 also seeks the quashing and setting aside of specific communications with various State authorities asking for repayment of the advance compensation that had been paid to them in connection with the acquisition of the Subject Property. A letter dated October 1, 2021 had been issued by the Deputy Commissioner, Konkan Division, Acquisition/Award Branch, Government of Maharashtra to this effect, and various orders and letters thereafter culminated in a mutation entry No. 1349 dated February 18, 2022.*

6. *Ranjit has also filed Writ Petition No. 10264 of 2023 (“**WP 10264**”), seeking the quashing and setting aside of the entire proceedings relating to the acquisition of the Subject Property. In WP 10264, Ranjit has sought a declaration that acquisition of the Subject Property has lapsed and has demanded that possession of the Subject Property be handed over to the Court Receiver, who had come to be appointed in Civil Suit No.339 of 1970 (“**CS 339**”), which was old family litigation involving partition of ancestral property. At the heart of the controversy lies a confusion over whether the Court Receiver was at all in possession of the Subject Property, when possession of the Subject Property was taken over by the State – we advert to it later.”*

8. In the interest of brevity, the entire factual matrix from the Judgement under Review is not being extracted in this judgement. Suffice it to say that possession of the Subject Property had been acquired by the State and certain

advance compensation too had been paid under the applicable policy, with a mutation entry recording the ownership of the State having been entered in the land records. In the writ petitions referred to above, the State had initially taken a stance that the Subject Property in the possession of the Court Receiver due to the *inter se* dispute between Anand, Ashok and Atul, could not have been handed over to the State and they could not have received advance compensation. A Special Land Acquisition Officer was squarely blamed for having distributed the advance compensation. CIDCO had claimed that the land acquisition had lapsed and therefore, the disbursement of the amounts to the three brothers was incorrect. The State admittedly took possession of the Subject Property and paid advance compensation in terms of its incentive policy to enable conflict-free and speedy acquisition of land. The State sought refund of the amounts paid and even took coercive steps to recover the compensation paid, even while the Subject Property continued to be registered in the name of the State with mutation entries asserting the State's ownership. Bank accounts were frozen as a means of recovering the compensation purportedly wrongly paid out.

9. For its part, CIDCO took a stand that although it had indeed deposited money with the Deputy Collector towards the acquisition, such deposit was itself erroneous since the Subject Property had already been acquired at some point of time in the past, without indicating when. Various Learned Division

Benches of this Court had given multiple opportunities to CIDCO to demonstrate acquisition of the Subject Property in the past, but to no avail. It was in no doubt that possession of the Subject Property had moved to the State and the dispute really was about whether compensation had already been paid in the past with the acquisition yet to be completed. Coercive steps taken by the State against Ashok and Atul, demanding refund of monies paid as advance compensation were stayed by a Learned Division Bench of this Court by an order dated February 22, 2023.

10. In the Judgement under Review, an order dated October 28, 2021 passed by a Learned Single Judge of this Court in Contempt Petition (L) No.197 of 2019 (“***Contempt Petition 197***”) was alluded to, in order to point out that it had been judicially held that the Subject Property was not in the possession of the Court Receiver at the relevant time, and this should have put all doubts to rest. Residual compensation payable for the Subject Property had not been paid even while a demand for refund of the partial amounts paid in advance was being pursued with coercive steps being adopted.

11. The core dispute among the landowners was covered by Civil Suit No.339 of 1970 (“***CS 339***”). Contempt Petition 197 related to the alleged contempt of an order dated September 14, 1970 in respect of joint family properties which included the Subject Property. The Contempt Petition

asserted that by handing over possession of the Subject Property to the State, which in turn handed over possession to CIDCO, gross contempt had been committed. The Court Receiver, merely on the basis of a letter dated January 27, 2020 from Ranjit, wrote to the Deputy Collector, Special Land Acquisition Officer and the Deputy Superintendent of Land Records on January 29, 2020, asserting that the Subject Property was in the possession of the Court Receiver. All these facts had been squarely dealt with by this Court in its order dated October 28, 2021 passed in Contempt Petition 197. It was judicially found that the Court Receiver stood discharged 15 years earlier by an order dated January 20, 2003 (“***January 2003 Order***”).

12. Specifically, it was judicially determined that the Court Receiver had been appointed by consent of all parties, and the Subject Property had been included in the schedule of properties given to the Court Receiver. On December 12, 1977, consent terms were filed by the parties. The parties agreed and declared that each of the three siblings and the two parents would have one-fifth share of the family properties, while the sister of the three brothers would have a right of maintenance until marriage and coverage of marriage expenses from the joint family properties. The Subject Property came to be recorded in the names of the three brothers namely, Atul, Ashok and Anand, after the demise of the parents, and an Agreement of Settlement dated August 3, 1996 (“***Settlement Agreement***”) was executed among them, agreeing that

the Court Receiver would be discharged in respect of properties that had been handed over to the Court Receiver by consent.

13. Specifically, the Settlement Agreement provided that all lands acquired by CIDCO in Panvel and nearby villages (as a generic description) would also form part of the settlement arrived at among the parties. Therefore, an ad-interim order came to be passed on December 24, 1996, by which the release of various properties by the Court Receiver was directed and therefore, the parties jointly moved the Court to discharge the Court Receiver.

14. Now after Anand's demise, his son Ranjit has been filing petitions and representations at various forums and has managed to have communications and correspondence generated. The letter from the Court Receiver as late as 2020 is one such example. By the January 2003 Order, a Learned Single Judge clearly held that the Court Receiver stood discharged 15 years ago, when the Subject Property appears to have been the subject matter of acquisition proceedings. According to Ranjit, land acquisition had not been completed at that time and therefore, the reference to lands acquired by CIDCO could never have covered the Subject Property and therefore, he contended that the Subject Property continued to be in the possession of the Court Receiver and therefore, could never have been acquired by CIDCO.

15. Ashok, Anand and Atul had filed affidavits pointing out that the Subject Property was clearly not in possession of the Court Receiver and that the Court Receiver had been discharged. The Learned Single Judge dealing with the Contempt Petition squarely held that CS 339 had been decreed way back on December 12, 1977 in accordance with the consent terms and that the Settlement Agreement had been reached among the three brothers in 1996, based on which the Court Receiver was discharged first on December 24, 1996 in respect of properties specifically listed, and finally on January 20, 2003 in respect of properties listed in specific clauses of the Settlement Agreement, which dealt with land handed over to CIDCO being identified as a class, thereby covering the Subject Property as well.

Ranjit's Multiple Proceedings:

16. To have a flavour of the multiple efforts taken by Ranjit, who claims a 60% portion in Anand's share, it is noteworthy that the proceedings initiated by him include:-

A] Civil Suit No. 462 of 2017 in the District Court, Panvel claiming his purported share of 60% in Anand's share;

B] Writ Petition No. 13389 of 2017 ("**WP 13389**") where CIDCO was a party, with Ranjit seeking a declaration that the acquisition in respect

of the Subject Property had lapsed;

C] WP 7604, challenging the order of the Special Land Acquisition Officer and seeking a declaration that the acquisition had lapsed, where CIDCO was a party – this petition was dismissed, among others, by the Judgement under Review;

D] Writ Petition (Stamp) No. 14933 of 2019 – this is only one of two Writ Petitions of Ranjit where CIDCO was not a party, seeking directions that Ranjit be heard under Section 21 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (“**2013 Act**”);

E] Civil Application No. 1792 of 2019 and Civil Application No. 19489 of 2019 were filed in WP 7604, seeking to make the Court Receiver a party – CIDCO being a party to WP 7604, it was privy to every portion of the record in these proceedings;

F] Writ Petition (Stamp) No. 18849 of 2019 – this is the only other Writ Petition where CIDCO was not a party – and here, Ranjit sought an opportunity to make his claim in the land acquisition proceedings, with an opportunity of being heard under Section 21 of the 2013 Act;

G] Contempt Petition 197, which clearly held that the Court Receiver had been discharged way earlier, and judicial findings in disposal of the

same were dealt with in the Judgement under Review. CIDCO was a party to these proceedings and the entire records of CS 339 were part of these proceedings with CIDCO having full access to everything with a full right to inspect and take every step that a diligent litigant could take; and

H] WP 10264, yet again seeking a declaration that the land acquisition had lapsed and that possession of the Subject Property ought to be handed over to the Court Receiver. This petition too was disposed of by the Judgement under Review.

17. In the proceedings that were disposed of by the Judgement under Review, earlier Benches had, by orders dated March 7, 2024 and March 14, 2024, castigated the affidavits filed on behalf of the State, pointing out that they were misleading and that the core answer as to whether acquisition had been conducted in respect of survey number 59/8 had remained unanswered by the State. By an order dated July 11, 2024 this Court clearly held that it was unconscionable that the State would desire to conduct an enquiry first to even confirm whether there is an award for the land acquired by the State in advance. Much of the conduct of the State has already been articulated in the Judgement under Review and is not being repeated here.

18. Suffice it to say that against this backdrop, for having kept the pot boiling and vexing parties with multiple rounds of proceedings, with a pointer to his outsized influence over keeping the State's stance fluid, in the Judgement under Review, Ranjit was directed to pay each of Ashok and Atul, costs in the sum of Rs. 5 lakhs. Aggrieved by the Judgement under Review, Ranjit filed a Special Leave Petition No. 29789–29791 of 2024, to challenge the Judgement under Review. These were squarely dismissed by the Supreme Court by an order dated December 13, 2024, thereby giving finality to the Judgement under Review.

CIDCO's Conduct after the Judgement under Review:

19. It is in this context that CIDCO's efforts and conduct in the run up to this Review Petition need to be considered. It is now clear from the record, based on queries under the Right to Information Act, 2005 made by Atul and Ashok, that the State has embraced the Judgement under Review and has decided not to challenge it. The State has even declared an award on April 8, 2025 for the Subject Property and this is part of the record in Contempt Petition (Lodging) No. 11956 of 2025 ("***Contempt Petition 11956***"). Therefore, the State is also obligated to conduct an enquiry and get to the root of the matter as to how there had been equivocating stances in the past, leading to

multiple Learned Division Benches of this Court making adverse remarks and castigating the State.

20. As pointed out to us by the Advocates on behalf of the Respondents, CIDCO has adopted a novel approach, as is writ large on the face of the record. On January 20, 2025, CIDCO filed a Special Leave Petition, claiming to be aggrieved. It is noteworthy that the filing of the Special Leave Petition was after the deadline for compliance pursuant to the Judgement under Review. CIDCO's petition in the Supreme Court was filed after Ranjit's attempt to be granted special leave to appeal had failed. It is noteworthy that CIDCO was a party to Ranjit's Special Leave Petition and was even represented by lawyers, but curiously, CIDCO's Special Leave Petition makes no mention of it. However, the Supreme Court registry keeps note of challenges arising from the same order and its office report highlighted this fact. The Special Leave Petition was not moved by CIDCO until much later.

21. It can be seen that the Synopsis of CIDCO's Special Leave Petition contains a verbatim copy-paste from Ranjit's dismissed Special Leave Petition – so much so, that even portions where Ranjit's pleadings referred to him as Petitioner, CIDCO still used that term "Petitioner" about actions of Ranjit, which ended up suggesting those were actions of CIDCO. Other troubling

elements found in the matter are that the file name of the uploaded PDF file of CIDCO's Special Leave Petition is titled "*Ranjit Anand Puranik.PDF*", when Ranjit was not a party to CIDCO's Special Leave Petition or to WP 1983 for the matter to be identified by Ranjit's name in CIDCO's internal records and workings.

22. The Special Leave Petition filed by CIDCO in January 2025 was not moved and was kept under objections. Atul and Ashok filed Contempt Petition (Stamp) No. 5796 of 2025 and the Contempt Petition 11956 for the failure to comply with the Judgement under Review. On April 15, 2025, notice was issued and the Managing Director of CIDCO was directed to file an affidavit. On April 21, 2025, CIDCO sought circulation of the Special Leave Petition that had been kept pending without circulation since January 2025.

23. The record shows that on April 28, 2025, when the Special Leave Petition was listed, CIDCO withdrew it on the premise that it had obtained new documents that would make a Review Petition more appropriate. Therefore, the Supreme Court permitted CIDCO to withdraw the Special Leave Petition to pursue review proceedings on the premise that CIDCO had managed to find access to vital new documents that would warrant a review.

24. However, whether CIDCO had indeed received new access to documents

itself is another telling story. CIDCO filed an application before the Bench having roster over suits and sought inspection of the record in CS 339. Curiously, while Ranjit was not a party to CS 339, and it was his father Anand who had consented to the Settlement Agreement and the discharge of the Court Receiver, which Ranjit would later controvert, the record clearly shows that CIDCO would give notice to advocates of Ranjit about every inspection of the proceedings in CS 339. Ranjit's representatives would remain present at every inspection working along with CIDCO in those inspections.

Grounds in the Review Petition:

25. According to CIDCO, the vital and important new evidence that has been unearthed, necessitating a review of the Judgement under Review, comprises the following:-

A] A letter dated May 2, 2003 addressed by Atul to the Court Receiver indicating that all three siblings Atul, Ashok and Anand had already received compensation for the Subject Property to the tune of Rs. 55,695/-;

B] A letter dated May 5, 2003 addressed by the Court Receiver to the Chief Land and Survey Officer would indicate that an Award No. 23 had been passed for acquiring the Subject Property with a compensation

amounting to Rs. 55,695/- and that such compensation had been equally distributed among Atul, Anand and Ashok and allotment of land under the 12.5% scheme was being addressed;

C] A letter dated January 11, 2004 addressed to the Chief Minister of Maharashtra by Atul would indicate that the Subject Property had already been acquired and the letter also encloses the possession receipt and the statement of total land acquired by CIDCO in 1973;

D] A letter dated January 11, 2004 addressed by Atul to the Managing Director, CIDCO in terms identical to the letter to the Chief Minister;

E] The Settlement Agreement dated August 3, 1996 entered into by the brothers in the CS 339, makes it clear that the Court Receiver was in possession of all lands acquired by CIDCO in Panvel and nearby villages. The Settlement Agreement details the land to be released from the Court Receiver with the discharge of the Court Receiver;

F] According to CIDCO, Atul and Ashok have suppressed the letters dated May 2, 2003, May 5, 2003 and January 11, 2004 in the multitude of proceedings before this Court, between 2011 and 2023, although the same concern the acquisition of the Subject Property and compensation to be paid in relation to it. Therefore, those who are guilty of

approaching the Court with unclean hands ought not to get any relief in the writ jurisdiction;

G] The Subject Property is claimed by CIDCO to have been acquired in 1973 and information seeking the status of the acquisition was only initiated for the first time in 2010 and such a delay would disqualify them from relief;

H] The Special Land Acquisition Officer is said to have filed a First Information Report dated April 13, 2022, in respect of certain missing awards and files. The file relating to the Subject Property is amongst the missing files and an affidavit to this effect had been filed in the original writ proceedings before this Court;

I] Thereafter, CIDCO contends that in view of the contents of the letters dated May 2, 2003, May 5, 2003 and January 11, 2004, it is evident that the Subject Property already stands acquired and vested in the Government and therefore, the State cannot reacquire its own land, which in turn necessitates a review and recall of the Judgement under Review.

26. Mr. G.S. Hegde, Learned Senior Advocate on behalf of CIDCO primarily relied upon CIDCO having come by authenticated documents by reason of its inspection of proceedings in CS 339.

Analysis and Findings:

27. Having carefully considered the aforesaid pleadings and the Affidavit in Reply resisting the Review Petition, in our opinion, what is writ large is that CIDCO was very much a party to Contempt Petition 197 and had full access to the record in CS 339. It is apparent that the documents said to have been received after great effort after the Judgement under Review were mostly documents that CIDCO had clear access to during the tortuous journey of the proceedings relating to the Subject Property. Having participated on multiple occasions in Contempt Petition 197, which laid to rest the entire controversy about the Court Receiver having had possession, as contended by Ranjit, CIDCO simply cannot claim that the aforesaid documents were never available to it. On the contrary, it appears from the meticulous Affidavit in Reply that the premise that documents have now been unearthed because of the inspection of CS 339 having been granted, is fallacious.

28. Specifically, the letter dated May 2, 2003 is evidently part of the Compilation of Documents filed in Contempt Petition 197 and various senior officials of CIDCO were parties to the proceedings. Notably, in those proceedings, CIDCO was represented and it was an active participant. In fact, the copies of documents annexed to the Review Petition bear the very pagination assigned to them in the course of the proceedings in Contempt

Petition 197.

29. Likewise, the letter dated May 5, 2003 addressed by the Court Receiver to the Chief Land and Survey Officer, which CIDCO claims to have received upon inspection is an integral part of WP 10264 filed by Ranjit, to which CIDCO is a party. On this count too, it is fallacious to indicate that some new document had been found. These documents were part of the record in the tortuous legacy of proceedings in the matter and are the subject matter of firm adjudication by multiple benches. It would be wholly inappropriate to reopen judicial findings returned after having examined these documents, in the garb of and in the course of the limited review jurisdiction.

30. Indeed, CIDCO filed an Interim Application No. 12722 of 2025 seeking orders of inspection of the records relating to CS 339 and a certified copy of all the relevant proceedings came to be allowed by an order dated April 24, 2025. Pursuant to such inspection, according to CIDCO, a letter dated May 2, 2003 had been addressed by the Plaintiff in the Suit to the Court Receiver, requesting the allotment of land under the 12.5% scheme against the acquired land and details of the Subject Property and compensation of Rs. 55,695/- mentioned against the Subject Property are alluded to. However, CIDCO candidly states that a certified copy of such letter is not available with it.

31. While the notification under Section 9 of the 2013 Act has been brought

to bear, awards for each of the other parcels of land are available but that for the Subject Property is not found. This is precisely what multiple Division Benches of this Court have repeatedly given an opportunity to confirm. Not having been able to demonstrate the completion of proceedings, and latching onto Ranjit's contention that the acquisition has lapsed, CIDCO has gone on a tangent to claim that the compensation for the land *may* have been paid way back in the past. It is strange that after judicial findings are rendered pursuant to adjudication of the controversy, and after the Judgement under Review has not been interfered with by the Supreme Court by rejecting Ranjit's Special Leave Petition, CIDCO should retreat from its Special Leave Petition on the premise of having obtained new documents for the first time, when it transpires that such documents were always in its possession and its contentions based on such documents had not cut any ice in judicial analysis.

32. It is almost as if a Review Petition is a license to agitate issues as if it were a suit, rather than to demonstrate an error apparent on the face of the record necessitating a review and recall of the Judgement under Review. For example, references are made to payments made to a mortgagee over the Subject Property, when it is apparent that there had been disputes with a mortgagee, and he had been paid out of the proceeds of other properties

33. Not to be outdone by CIDCO's strategy, Advocates for Atul and Ashok

have also sought to make detailed submissions on merits as if this were a fresh adjudication for the first time, attempting to counter every statement of CIDCO on matters of fact set out in the Review Petition. Suffice it to say, when it has become clear that the very foundation, that new access to documents that were never in CIDCO's possession, has been found to be untenable, it is wholly inappropriate for CIDCO to pursue this contrivance and device of withdrawing the Special Leave Petition craving to file the Review Petition, and to then suggest to this Court that the Supreme Court had applied its mind to merits to enable the filing of the Review Petition.

34. Against this backdrop, the pleadings in the Review Petition are telling. In the Review Petition, CIDCO would contend that it had earlier been unable to produce a copy of the award passed, as well as proof of any compensation having been paid in respect of acquisition of land bearing Survey No. 59/8, but after passing of the Judgement under Review, its "higher authorities" directed CIDCO's officers to recover all documents pertaining to the status and other revenue proceedings and acquisition of the Subject Property. CIDCO contends that the files of the Subject Property, as well as of all adjoining lands, similar projects and other related files from multiple departments including the land records and acquisition records were examined.

35. We are unable to be persuaded by the strenuous and vociferous efforts

by Mr. G. S. Hegde, Learned Senior Advocate on behalf of CIDCO to make out a case for a review. On the contrary, the submissions by Mr. Girish Godbole, Learned Senior Advocate on behalf of Ashok are wholly acceptable because it is after Ranjit's failed attempt to get special leave to appeal (dismissed on December 13, 2024) that CIDCO filed a Special Leave Petition and that too when the State itself has decided not to pursue any challenge to the Judgement under Review. It was the State that effected the land acquisition and has accepted that there is nothing to show the actual completion of acquisition and payment of compensation.

36. Indeed, the synopsis in CIDCO's Special Leave Petition refers to WP 11835, which was Ranjit's Writ Petition as being its own Writ Petition – clearly indicating a verbatim reproduction of Ranjit's failed Special Leave Petition. This was nothing but a second bite at the cherry, and it cannot be forgotten that Ranjit's resourcefulness was commented upon and led to imposition of costs, which have also not been disturbed. Indeed, the file name for CIDCO's Special Leave Petition is named "*Ranjit Anand Puranik.PDF*". A holistic view of all the foregoing factors is a reasonable pointer to the Review Petition not only being a misadventure but also an abuse of the process of law, with nothing new to show and no error apparent on the face of the record to show to necessitate a review.

37. It is also telling that it is after the issuance of notice in Contempt Petition (Stamp) No. 5796 of 2025 and the Contempt Petition 11956 to the Managing Director of CIDCO that the Special Leave Petition that had been filed and kept under defects was circulated. The fact that Ranjit's lawyers received notice of the inspection conducted by CIDCO and participated in the inspection when Ranjit was not a party to CS 339 is also telling. Ranjit's father Anand was a party and there are other heirs of Anand against whom Ranjit has a claim – a 60% share in Anand's share. It is remarkable that none of them was then identified and given notice of inspection in the manner Ranjit was (if CIDCO was keen to ensure fairness to Anand's legal heirs).

38. Mr. Godbole would also point out that on May 2, 2025, an Affidavit in Reply was filed by CIDCO in the Contempt Petition (Stamp) No. 11956 of 2025, contending that an affidavit dated May 1, 2025 has been filed in the Interim Application (L) No. 12722 of 2024 pursuant to the order dated April 24, 2025 passed by the Learned Single Judge granting inspection of the record. However, Mr. Godbole contends that no such affidavit was ever filed. Despite CIDCO being called upon, by a letter dated May 3, 2025 asking it to provide the details and certain documents referred to in its Interim Application, he would contend that the same have not been provided till date.

39. Based on documents obtained under the RTI Act, it is apparent that on

June 9, 2025, the Managing Director of CIDCO wrote to the Additional Chief Secretary of the Government of Maharashtra, asking for a review to be filed. On July 4, 2025, CIDCO requested the State to file a Review Petition and the State rejected CIDCO's request. *Finally*, on July 19, 2025, CIDCO filed its own Review Petition which again was served on Ranjit Puranik although he is not a party to it. Considering that the Judgement under Review is a common judgement covering multiple Writ Petitions, we discount even this factor, but we must mention that Ranjit immediately filed an Intervention Application in this Review Petition, which we rejected by an order dated February 13, 2026. It is remarkable that having lost his attempt to get special leave to appeal, Ranjit would want to participate at CIDCO's cue, in the Review Petition.

40. Therefore, going purely by the pleadings in the Review Petition and the submissions made by the Learned Senior Advocates for the respective parties, we have applied our mind to the contents of the Review Petition and examined the record to return our conclusions as set out above.

41. It is apparent that the Review Petition does not bring to bear any new and important piece of evidence as has been sought to be projected on CIDCO's behalf. The grounds for review would necessitate bringing on record new discovery of material which had not been and could not have been brought to bear during the earlier proceedings or an error apparent on the face

of the record. On the other hand, considering the documents that CIDCO always had with it, the inspection and the purported new discovery appear to be a ruse to pursue, in the garb of the Review Petition, what is in substance a disguised appeal.

42. We cannot ignore the continued outsized shadow of Ranjit that appears to loom large over CIDCO. However, bearing in mind that this is a narrow review jurisdiction and that too within the narrow extraordinary writ jurisdiction, we leave it at that and make no further intervention. Suffice it to say, the Review Petition is devoid of merit and brings nothing new to bear and is in fact an attempt to make a backdoor entry to destabilise a legacy of judicial findings and observations in the matter.

43. Purely for the record, we must point to multiple occasions in the past where CIDCO has itself initiated acquisition proceedings in respect of the Subject Property after Atul, Ashok and indeed Anand, jointly filed Writ Petition No. 2343 of 2011 seeking directions to complete the acquisition proceedings, pay compensation and enable the landowners to avail of the 12.5% scheme of allotment of land in a timebound manner. CIDCO forwarded a proposal of acquisition on May 18, 2011 to the District Collector. In July 2011, CIDCO filed an affidavit stating that the proposal was pending with the Collector, Raigad, and that further steps would be taken for acquisition of the

Subject Property. Three months after CIDCO's proposal, by an order dated August 16, 2011, the Writ Petition was disposed of directing that action be taken on the proposal and to complete the proceedings and declare the award.

44. Inaction over this order dated August 16, 2011, led to filing of Contempt Petition No. 356 of 2012. The Managing Director of CIDCO filed an affidavit dated February 26, 2013 confirming that the land acquisition proceedings were in progress and that the award had not been passed. This led to an order dated August 16, 2013 disposing of the Contempt Petition, taking note of the commitment and holding that no contempt was made out. A notification dated July 23, 2012, under Section 4 of the Land Acquisition Act, 1894; a notification dated December 12, 2012, under Section 6; and a notification dated January 1, 2013 under Section 9 were issued, and a draft award too was approved in May 2013.

45. Revised computation under the 2013 Act was made, and in November 2017, CIDCO deposited the compensation amount with the Deputy Collector. In February and March 2018, the Government deemed the acquisition to have lapsed and a fresh notification for acquisition dated April 27, 2018 was issued under the 2013 Act, based on a proposal mooted by none other than CIDCO on March 21, 2018. This entire legacy of conduct based on the very same records cannot simply be wished away and revisited in the garb of the Review Petition.

46. In these circumstances, we are satisfied that the Review Petition is misdirected, untenable and deserves to be *dismissed*.

47. All actions required to be taken pursuant to this order shall be taken upon receipt of a downloaded copy as available on this Court's website.

[SOMASEKHAR SUNDARESAN, J.]

[G. S. KULKARNI, J.]